POST

2016 Draft – “Clean Air and Climate Change Act”

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Add your revisions to the latest draft of the “Clean Air and Climate Change Act” (see https://docs.google.com/document/d/1wEFHhoJMpeY_-SqRmK8P7ZYLtxu0gX-QE9tYCUYfoAw/edit?usp=sharing (https://docs.google.com/document/d/1wEFHhoJMpeY_-SqRmK8P7ZYLtxu0gX-QE9tYCUYfoAw/edit?usp=sharing))

Below is a summary.

The final draft will be formally unveiled at the Annual AWMA Hot Air Topics Conference on February 11th in Houston (see http://www.awma-gcc.org/ (http://www.awma-gcc.org/))

The Clean Air and Climate Change Act of 2016

- **Primary goals are to:**

(1) Create a comprehensive multi-pollutant approach to addressing air quality and climate change concerns;
(2) Realign responsibility and authority under the Act to increase the efficiency and effectiveness of International, Federal, State, and Local control efforts; and

(3) Modernize and simplify the Act to make it more transparent and easier to implement and enforce.

- ## Establishes an international component to managing and helping improve air quality in the U.S.

– Creates the authority to negotiate and develop a Multi-pollutant International Emissions Management Program (MIEMP)

- ## Modernizes, Simplifies, and Consolidates Much of the Current Air Quality Management System into a National Multi-pollutant Market-based System (NMMS):

– Congress sets the initial emission reduction schedule with the NMMS based on the advice of EPA, States, and others (a comprehensive, coordinated, multi-pollutant review which includes NAAQS pollutants, greenhouse gases, visibility pollutants, toxics, and other pollutants). *[It should be noted that the NAAQS are retained and are strictly science-based. Health is essentially the only consideration for where the NAAQS are set. The difference is that economics and politics would be more truthfully and honestly de-linked from where the health-based standards should be set. Congress would then decide on the amount and speed with which to pursue NAAQS reductions based on where the NAAQS are set, by Congress's goals for reducing other pollutants, by economic considerations, by trade-offs for spending money on further*

NAAQS reductions rather than on other societal benefits, by energy policy considerations, etc.].

– Requires EPA to periodically review the NMMS and submit a new emission reduction schedule for Congressional approval (if Congress fails to act, the new schedule would become automatically effective on a given date). This periodic review also includes recommendations from EPA to Congress on changes to the MIEMP.

– Larger stationary sources are made subject to the NMMS and are required to demonstrate compliance via real-time facility-wide source monitoring (PSD/NNSR, NSPS, MACT, and Title V were therefore no longer needed for these large sources and were removed). The NMMS for mobile sources is generally implemented the same as under the current CAA. The NMMS for smaller stationary sources is implemented via national performance standards (combining MACT and NSPS).

– States are placed in charge of enforcing the NMMS, addressing potential fence-line or hot-spot concerns not addressed by the NMMS, and functioning as innovators, information gatherers, and primary advisors on developing the NMMS and national performance standards. States are provided with not only more rights to develop more stringent controls, but more ability to do so since less resources are needed to be spent on administrative exercises.

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